

account of the activities of the Commissioner during the financial year immediately preceding the financial year in which such report is prepared and forward, before such date as may be specified by the Central Government, copies thereof to the Central Government, and that Government shall cause that report to be laid, as soon as may be, after its receipt before each house of parliament.

CHAPTER IV

CONSTRUCTION AND MAINTENANCE OF WORKS

11. Power of railway administration to execute all necessary works -

Notwithstanding anything contained in any other law for the time being in force, but subject to the provisions of this Act and the provisions of any law for the acquisition of land for a public purpose or for the companies, and subject also, in the case of a non-government railway, to the provisions of any contract between the Non-Government railway and the Central Government, a railway administration may, for the purpose of constructing or maintaining a railway -

(a) make a construct in or upon, across, under or over any lands, or any street, hills, valleys, roads, railway, tramways, or any rivers, canals, brooks, streams or other waters, or any drains, water pipes, gas pipes, oil-pipes, sewers, electric supply lines, or telegraph lines, such temporary or permanent inclined - planes, bridges, tunnels, culverts, embankments, aqueducts, roads, lines of railways, passages, conduits, drains, piers, cutting and fences, in-take wells, tube wells, dams, river training and protection works as it thinks proper;

(b) alter the course of any river, brooks, streams or other water courses, for the purpose of constructing and maintenance tunnels, bridges, passages, or other works over or under them and divert or alter either temporarily or permanently, the course of any river, brooks, streams, or other water courses or any roads, streets or ways, or raise or sink the level thereof, in order to carry them more conveniently over or under or by the side of the railway;

(c) make drains or conduits into, through or under any lands adjoining the railway for the purpose of conveying water from or to the railway;

(d) erect and construct such houses, ware houses, offices and other buildings, and such yards, stations, wharves, engines, machinery apparatus and other works and the conveniences as the railway administration thinks proper;

(e) alter, repair or discontinue such buildings, works and convenience as aforesaid or any of them and substitute other in their stead;

(f) erect, operate, maintain or repair any telegraph and telephone lines in connection with the working of the railway;(g) erect, operate, maintain or repair any electric traction equipment, power supply and distribution installation in connection with the working of the railway; and

(h) do all other acts necessary for making, maintaining, altering or repairing and using the railway.

12. Power to alter the position of pipe, electric supply line, drain or sewer, etc. - (1) A railway administration may, for the purpose of exercising the powers conferred on it by this Act, alter the position of any pipe for the supply of gas, water, oil or compressed air, or the position of any electric supply line, drain or sewer.

Provided that before altering the position of any such pipe, electric supply line, drain or sewer, the railway administration shall give a notice indicating the time at which the work of such alteration shall commence, to the local authority or other person having control over the pipe, electric supply line, drain or sewer.

(2) The railway administration shall execute the work referred to in sub-section (1) to the reasonable satisfaction of the local authority or the person receiving the notice under the provision to the sub-section (1).

13. Protection for Government Property. - Nothing in section 11 and 12 shall authorise -

(a) a railway administration of the government railway to do anything on or to any works, lands or buildings vested in, or in the possession of, a State Government without the consent of that Government; and

(b) a railway administration of a non-Government railway to do anything on or to any works, lands or buildings vested in, or in the possession of, the Central Government or a State Government, without the consent of the Government concerned.

14. Temporary entry upon land to remove obstruction, to repair or to prevent accident - (1) Where in the opinion of a Railway administration - (a) there is imminent danger that any tree, post or structure may fall on the railway so as to obstruct the movement of the rolling stock; or

(b) any tree, post, structure or light obstructs the view of any signal provided for movement of rolling stock; or

(c) any tree, post or structure obstructs any telephone or telegraph line maintained on it,